

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 927

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO TRAFFIC INFRACTIONS; AMENDING SECTION 49-328, IDAHO CODE, TO PROVIDE FOR REINSTATEMENT OF A DRIVER'S LICENSE THAT HAS BEEN SUSPENDED; AMENDING CHAPTER 15, TITLE 49, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 49-1505, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING SUSPENSION OF DRIVER'S LICENSES AND PRIVILEGES FOR FAILURE TO PAY UNDERLYING TRAFFIC INFRACTION PENALTIES AND TO PROVIDE FOR APPEALS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-328, Idaho Code, be, and the same is hereby amended to read as follows:

49-328. REINSTATEMENT OF REVOKED, DISQUALIFIED OR SUSPENDED DRIVER'S LICENSE -- FEE -- WHEN REINSTATEMENT PROHIBITED. (1) When the period of revocation, disqualification or suspension of a driver's license has expired, or the reason for the revocation, disqualification or suspension no longer exists, the department shall reinstate the driver's license or driving privileges on application of the driver.

(2) The application shall be in the form prescribed by the department and accompanied by a reinstatement fee of twenty-five dollars (\$25.00) which shall be deposited in the state highway account.

~~(3) A driver's license shall not be suspended for failure to pay an infraction penalty. All driver's licenses suspended prior to July 1, 2018, for failure to pay an infraction penalty shall be reinstated upon application and without charge to the applicant. A driver's license that has been suspended pursuant to section 49-1505, Idaho Code, for failure to pay an infraction penalty shall not be reinstated until the licensee provides proof that the infraction penalty has been paid to the court.~~

(4) In addition to any other fees required in this section to be collected, the department shall collect sixty dollars (\$60.00) for reinstating a driver's license after conviction for driving under the influence, without privileges, and after conviction or other violation of any other traffic-related misdemeanor or infraction, of which fees forty dollars (\$40.00) shall be paid over to the county treasurer of the county in which the conviction occurred for support of that county's justice fund, or the current expense fund if no county justice fund has been established, and the twenty dollars (\$20.00) shall be deposited in the state highway account.

(5) In addition to any other fees required in this section to be collected, the department shall collect two hundred dollars (\$200) for reinstating a driver's license after a suspension imposed under the provisions of section 18-8002 or section 18-8002A, Idaho Code, or after a revocation, disqualification or suspension arising out of any alcohol or drug-related offense, other than a suspension imposed upon a person under eighteen (18)

1 years of age pursuant to section 18-1502(d), Idaho Code. Funds collected
 2 pursuant to this subsection shall be deposited in the state highway account.

3 (6) When there is more than one (1) reason why a driver's license was re-
 4 voked or suspended or why a driver was disqualified, the department shall not
 5 collect multiple fees for reinstatement, but shall only collect one (1) re-
 6 instatement fee, which shall be the greater reinstatement fee, provided how-
 7 ever, the department shall collect a reinstatement fee for each revocation,
 8 disqualification or suspension under chapter 80, title 18, Idaho Code.

9 SECTION 2. That Chapter 15, Title 49, Idaho Code, be, and the same is
 10 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 11 ignated as Section 49-1505, Idaho Code, and to read as follows:

12 49-1505. SUSPENSION OF DRIVER'S LICENSE AND PRIVILEGES FOR FAILURE TO
 13 PAY UNDERLYING TRAFFIC INFRACTION PENALTY -- APPEAL. (1) Beginning on Jan-
 14 uary 1, 2027, the department shall suspend the driver's license, permit, and
 15 operating privileges of any driver who has unpaid fines for infractions upon
 16 receiving notice from any court of the state that such person is sixty (60)
 17 days or more delinquent in paying the penalty for a traffic infraction judg-
 18 ment or an established payment plan. The notice may be sent to the depart-
 19 ment by any court, which shall certify that a judgment for an infraction from
 20 a moving violation, not including citations issued to a pedestrian or a bi-
 21 cyclist or for those involving a parking violation, has been entered against
 22 the person and such person has failed to pay the penalty.

23 (2) The suspension shall be processed by the department in the same man-
 24 ner as other suspensions under section 49-326, Idaho Code, except that no
 25 hearing shall be held by the department. Upon receipt of the notice of non-
 26 payment of the penalty from the court, the department shall perform the min-
 27 isterial duty of giving official notification of suspension or nonrenewal of
 28 the driver's license and operating privileges.

29 (3) The department shall reinstate a driver's license, permit, or priv-
 30 ileges that have been suspended pursuant to this section upon proper appli-
 31 cation and payment of any required fees with proof of payment of the infrac-
 32 tion penalty. Upon payment of the infraction penalty, the court shall issue
 33 a receipt of proof of payment, which may be filed with the department.

34 (4) A driver's license, permit, or driving privileges that were sus-
 35 pended pursuant to this section shall not be reinstated under the provisions
 36 of section 49-328, Idaho Code, until the penalty for the infraction has been
 37 paid to the court in the county in which the citation was issued.

38 (5) Any person operating a motor vehicle during a suspension issued
 39 pursuant to the provisions of this section, whose driver's license, per-
 40 mit, or privileges have not been reinstated under the provisions of section
 41 49-328, Idaho Code, shall be in violation of the provisions of section
 42 49-301, Idaho Code, for operating a motor vehicle without a driver's li-
 43 cense.

44 (6) Any person whose driver's license, permit, or privileges have been
 45 suspended under this section may appeal to the district court in the county
 46 where the infraction judgment was entered within the time and in the man-
 47 ner provided for criminal appeals from the magistrate division to the dis-
 48 trict court. The appeal shall be expedited as provided by rule of the supreme
 49 court. If the district court finds that the notice of nonpayment of the in-

1 fraction penalty should not have been sent to the department for suspension
2 of the driver's license, permit, or privileges, the district court shall or-
3 der the privileges be reinstated by the department, and upon receipt of a
4 copy of such order, the department shall reinstate the privileges without
5 the payment of a fee.

6 (7) For a person whose driver's license, permit, or operating priv-
7 ileges were suspended pursuant to this section, the department may, in
8 its discretion, issue a temporary restricted permit to allow the person to
9 travel to and from his place of employment only.

10 (8) It shall not be a violation of this section for a person to operate a
11 motor vehicle during a suspension issued pursuant to this section for medi-
12 cal emergencies.

13 SECTION 3. An emergency existing therefor, which emergency is hereby
14 declared to exist, this act shall be in full force and effect on and after its
15 passage and approval.